

23STCV11134 23STCV11134

County: los-angeles

Division: Civil Law and Motion

Department: 413

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TENTATIVE RULING

Hearing

Date: August 7, 2026

Lucy Broadbent et al. v. 3585 Multiview, LLC, et al.,

Case No. 23STCV11134

Ruling: Plaintiffs' Motion for Order Appointing

Receiver is denied without prejudice.

Ruling on Defendants'

Evidentiary Objections: Objections to Collins Decl. filed with Motion: sustained

as to paras. 3, 4, 5, 6 (except for Exh. 2), 8; otherwise overruled;

Objections

to Feffer Declarations filed with Motion and with Reply: overruled; goes to weight.

Objections

to Collins Decl. filed with Reply: Sustained.

Plaintiffs

are requesting appointment of a receiver pursuant to Code of Civil Procedure section 564(b)(9), which provides: "A

receiver may be appointed by the court in which an action or proceeding is

pending, or by a judge of that court, in the following cases: . . . (9) In all

other cases where necessary to preserve the property or rights of any party."

Plaintiffs

contend that Defendants have failed to comply with requirements of the City of Los Angeles with regard to construction on their property, including permits, erosion remediation, and structural issues, and that their failure to comply has resulted in mudslides that have damaged their property. They are concerned that continued failure to comply will cause further damage to their property from mudslides because of the upcoming Super El Nino weather pattern, which is often accompanied by heavy rains and flooding, which is predicted for winter 2026-2027. Much of Plaintiffs' evidence is based on hearsay. Although they have presented evidence of two Orders to Comply, Defendants have presented evidence of compliance with the OTC to the City's satisfaction.

Defendants

have also offered evidence that at least one of the mudslides was caused by erosion on property other than theirs. They have also presented evidence that the City is not intending to pursue the criminal matter for which Plaintiff presented evidence of a referral to the City Attorney's office.

Appointment

of a receiver is an extraordinary remedy; it causes great expense to one or both parties as well as disruption of a business operation or, as here, construction that may be occurring on a property.

The Court

can understand Plaintiffs' concerns about protecting their properties from further mudslide damage in the upcoming expected heavy rains this winter. While Defendants stated that they submitted erosion mitigation plans to the City for winter 2026-2027, which were approved by the City, the evidence did not support that assertion. The latest plans appear to have been for winter 2025-2026, and approval appears to have expired in April 2026.

If evidence

is presented that Defendants are not taking reasonable measures to assure downhill properties are protected from mudslides or erosion due to any instability of their property or soils on their property because of the construction on their property, including but not limited to appropriate approvals from the City for such measures, the Court may entertain future requests for equitable relief by Plaintiffs.